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SUBJECT* VISN Radiology Artificial Intelligence

GENERAL INFORMATION

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ADDITIONAL INFORMATION

AGENCY'S URL	
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AGENCY CONTACT'S EMAIL ADDRESS	
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*= Required Field

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DESCRIPTION

FDA approved Radiology Artificial Intelligence (AI) software platform with multiple imaging AI applications for the Veterans Integrated Service Network (VISN) 1

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Contracting Officer's Representative (COR) / Point of Contact (POC)

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Contract Title:

FDA approved Radiology Artificial Intelligence (AI) software platform with multiple imaging AI applications for the Veterans Integrated Service Network (VISN) 1.

Background

The purpose of this open solicitation is to provide VISN 1 – VA New England with a shared AI platform to assist radiology in the detection and reporting of disease, streamlining the workflow, and improve detections sensitivity and specificity.

VISN 1 is comprised of the following locations: VA Boston Healthcare System (Jamaica Plain, West Roxbury, Brockton), Bedford VA Healthcare System, Central Western Massachusetts VA Healthcare System (Leeds and Worcester), Connecticut VA Healthcare System (West Haven, Newington), Providence VA Healthcare System, Manchester VA Healthcare System, White River Junction VA Healthcare System and Maine VA Healthcare System (Togus/Augusta/Portland).

VISN 1 is currently providing Radiology services utilizing a hub and spoke PACS model spread across numerous states and Veterans Hospitals and Health Centres.

VISN 1 completes an average of 320,000 multi-specialty exams per year. The expected growth rate assumed to be 5% on a yearly basis.

Scope

The scope of this contract is to provide a Commercial-Off-the-Shelf (COTS), Radiology Platform with AI solution, which utilizes AI techniques and technologies, and Software as a Medical Device (SaMD) delivery model. The tool will integrate with the VA Electronic Medical Health Record (EMHR), radiology Picture Archive and Communications Systems (PACS) and workflows such that providers can leverage AI

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capabilities within the Radiology Service to improve healthcare delivery to the Veteran and increase operational efficiency for VA.

General Requirements

AI platform will have a Radiology AI Database and Processing node, cloud based is preferred but on-premises at least on one of the VISN 1 sites is acceptable. All sites will have access to the AI database directly from their site's PACS system. This will allow almost immediate results on the reading of images through the Radiologists' normal workflow. The AI platform will then house three or more FDA-cleared AI software applications that may include:

- Neurology for stroke, intracranial hemorrhage, and/or TBI detection
- Pulmonary embolus
- Bone fracture detection
- Cardiac calcium detection and scoring
- Breast density and breast cancer detection

(with capability for adding additional AI software applications). The selected AI solution will be fully DICOM & HL7 compliant for orchestration and reporting. AI technologies will allow for instantaneous identification of potentially abnormal images through a deep learning algorithm.

Additional Equipment or Replacement Equipment (EE number):

The AI platform consists of a combination of Window/Linux servers that may be virtualized. Specifications will be tailored to the VISN's exam study volumes, anticipated AI algorithms and expected/required turnaround times for the specific applications. Although the VISN may supply the hardware and operating systems, the selected solution will be able to assist the VISN with tailored specifications and specific BOM for VA approved hardware devices.

Privacy & Confidentiality statement

- In reference to VHA Handbook 6500.6 Appendix A, Block 6, the equipment included in this contractor does involve connection of IT devices to a VA network. Therefore, C&A, SAP, & the following from App C apply.
- In reference to VHA Handbook 6500.6 Appendix A, Block 7, the equipment does involve storing, generating, transmitting, or exchanging VA sensitive information. Therefore, the following from App C apply.
 - The contractor, their personnel, and their subcontractors shall be subject to the Federal laws, regulations, standards, and VA Directives and Handbooks regarding information protection, patient privacy, and information system security as delineated in this contract.

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- During contract performance, contractor may require access to VA facility, equipment, information systems, or sensitive data; to provide services, install, train, maintain or repair equipment.
- VA Course No. VA10176 is privacy training required for VA contractors requiring access to VA facilities for more than 2 consecutive days or any access to VA information systems. Training will be completed prior to being granted access to facilities, equipment, or to the data therein. Training is available on VA TMS website at: <https://www.tms.va.gov/SecureAuth35/>.
- Contractor will provide evidence of training to the COR, upon request.

Contractor Responsibilities:

Project Management / Reporting

The Contractor shall deliver a Project Management Plan (PMP) that describes the product delivery schedule, milestones, and risks within the deadlines established by the Government in the tasks below. The Contractor shall deliver the initial PMP at the technical kick-off meeting. Work shall not commence until the VA PM approves the final PMP.

The Contractor shall provide the COR with Monthly Progress Reports that include product delivery status, milestones achieved during the past month, activities planning in the coming month, and delivery risks with recommended mitigations. The report shall also identify any problems that arose and a description of how the problems were resolved. If problems have not been completely resolved, the Contractor shall provide an explanation including their plan and timeframe for resolving the issue. The Contractor shall monitor performance against the previous month's delivered Monthly Progress Report and report any deviations.

The Contractor shall hold a post-award kick-off meeting within 10 days after contract award. The Contractor shall present, for review and approval by the Government, the details of the intended approach, work plan, and project schedule for each effort. The Contractor shall collaborate with the government to set the dates, locations (shall be virtual), agenda (shall be provided to all attendees at least five calendar days prior to the meeting), and meeting minutes (shall be provided to all attendees within three calendar days after the meeting). The Contractor shall invite the CO, CS, COR, and VA PM. The Contractor shall deliver a short report summarizing the Kickoff Meeting and providing minutes from the meeting within five days after the kick-off meeting.

The Contractors shall deliver monthly usage reports to facilitate the VA's execution of the pilot. Usage reports shall include but are not limited to the number of times an end user uses the system over the reported time period, reports of license holders who have not logged in by week, reports of any comments on quality submitted to the contractor transcripts of encounters, data on the number of edits and time spent editing notes prior to their approval by the physician, and total number of scribed encounters.

At the end of a performance period (base period and option periods), the Contractor shall present a list of additional integrations or steps needed to scale the project beyond the pilot. Example of this include

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additional data sets to connect to, additional software requiring integration, and additional tools to be created.

Deliverables:

- Project Management Plan
- Monthly Progress Reports
- Technical Kickoff Meeting Report and Minutes
- Monthly Usage Statistics Report

Report on additional integrations needed for scalable use.

AI Platform Functional Requirements

The Contractor shall provide a Commercial Off-the-Shelf (COTS) FDA-approved Radiology AI Software as a Medical Device Platform SaMD solution, on a Contractor provided infrastructure that is compliant with an on-premises solution. The AI platform infrastructure would include computational and graphical hardware needed to run AI applications/module solutions without access to internet/cloud. Only external connections would be for troubleshooting or initial deployment setup. All additional AI software added to the AI platform shall be FDA cleared. See additional detail regarding VA Authority to Operate (ATO) requirements. Alternatively, the solution may be hosted on the VA Enterprise, contingent upon VA provision of an ATO, in which case the Contractor shall coordinate with VA to ensure compliance with all applicable security and operational directives. Specific platform functional requirements include:

Deliverables:

- Platform must have an Authority to Operate (ATO) with VA systems.
- Platform must provide access to a marketplace of third-party FDA-cleared machine learning algorithms for medical imaging applications.
- Solutions available on platform must include but are not limited to the following high-priority applications: stroke triage (including intracranial hemorrhage, large-vessel occlusion), traumatic brain injury; musculoskeletal trauma (including detection of fractures, dislocations, joint effusions, and vertebral body compression deformities); oncologic imaging including cancer risk stratification (breast density) and cancer screening (breast cancer mammography).
- Platform must have the ability to provide a broad AI marketplace of additional AI solutions beyond the initial AI solutions procured in the base contract that can be added on as an option. The options must allow flexibility to procure new additional AI solutions either at specified VAMCs or across the entire VISN.
- Platform must be capable of running custom (local) medical imaging algorithms through a standard predefined API.
- APIs for custom algorithm deployment may include but are not limited to containerized applications, REST endpoints, DICOM servers or other packaged software in a portable format. Applications deployed within the platform must be able to run model inference using raw DICOM files as input.

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- A priority will be given to platforms with internal routing and orchestration capabilities including but not limited to correctly routing specific exams and/or imaging series to specific algorithms.
- Applications deployed within the platform must be able to generate modality independent, Contractor neutral outputs.
- Outputs must be routed back to all required DICOM archives including VA PACS, Vista Imaging, and VA enterprise.
- Outputs must be integrated natively into PACS viewing software using conventional interfaces such as DICOM Secondary Capture (SC).
- Outputs may also be integrated into third-party dictation software such as Microsoft PowerScribe, including measurements and other quantitative model predictions.
- A priority will be given to platforms that further extend these capabilities with custom viewing interfaces including but not limited to third party web-based viewers and/or mobile applications.
- Platform must have the capability to perform quality assurance (QA) and quality control (QC) on deployed models.
- QA/QC functionality may be implemented through mechanisms such as global dashboard aggregate statistics for usage and algorithm results.
- Priority is given to platforms with capability of archiving user feedback including identifying algorithm errors (false positives, false negatives) or other operational issues (model inference on incorrect exam).
- Priority is given to platforms with automated or semiautomated methods of characterizing prospective algorithm performance for example through the use of weak labels derived from radiology reports with language models.
- Platform may be able to support bulk transfer of DICOM data from VA PACS to external node including VA enterprise cloud.
- Platform may be able to support image-level and header-level deidentification.
- Platform may be able to support imaging data annotation including classification, object localization, and segmentation.
- Platform may be able to support extended algorithm functionality provided by third-party applications
- Operate within the VA Enterprise with an on-premises approved system.
- Client application must operate on standard VA Government Furnished Equipment (GFE) and be TRM approved internal VA OIT vetting process. or something to that degree versus outlining everything. Retain local encrypted temporary data backup for resuming use when operation is restored.
- In the event of intermittent network connectivity issues (less than 5 minutes during one request) the software shall seamlessly resume operation when a connection is restored
- In the event of a fault or connectivity loss greater than 5 minutes, the software shall provide user feedback and the ability to reinitiate a request from backup once software resumes.
- Be able to be configure to automatically clear backup storage after a set time limit.

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- Contractor shall provide the data in the VA required format in VA PACS.
- System shall automatically route candidate cases to the various AI algorithms based on configurable parameters using HL7 and DICOM values. All routing shall be optimized to reduce transfer and analysis timelines.
- Positive AI findings shall trigger a change to a higher priority status. Negative findings shall not decrement the submitted priority level.
- Workflow and analysis for ICH AI processing shall be no more than 10 minutes from image ingest at the PACS server to completed analysis with priority status change for a positive finding and write back/storage of key images.
- AI processing shall generate a structured report to VR system and write back to the PACS with a secondary capture series identifying the finding (positive, negative, unable to process) and will identify the specific slice that triggered the finding.
- Platform shall be capable of testing and validating model performance of VA developed AI models in a development environment prior to deploying into production.
- Platform shall be able to test VA developed algorithms for improving quality of care efficiently by detecting disease states and prediction of clinical outcomes through AI.
- Platform must be able to process DICOM raw images and associated metadata for medical radiology images obtained in routine clinical practice (i.e., MRI, CT, X-Ray, Ultrasonography, etc.) in a separate secure container from FDA AI SaMD commercial off the shelf (COTS) workflows.

The SaMD solution shall include a web-based and clinician facing component compatible with MS Windows and Apple iOS. The Contractor shall implement the solution, including training and operational support, at eight of VA Medical Center locations located in the continental U.S. These sites are currently proposed and may undergo adjustments as necessary.

The solution shall have the capability to test VA developed algorithms for improving quality of care more efficiently by detecting disease states and prediction of clinical outcomes through artificial intelligence. The platform must be able to process DICOM raw images and associated metadata for medical radiology images obtained in routine clinical practice (i.e., MRI, CT, X-Ray, Ultrasonography, etc.) in a separate and secure container from FDA AI SaMD commercial off the shelf (COTS) workflows.

Radiology AI software platform implementation

The Contractor shall implement the Radiology AI Software as a Medical Device Platform capability at all VISN 1 VA Medical Center (VAMC) locations. The Radiology AI Software Platform capability shall be configured and ready for release within 90 days after Contract award and completion of VA ATO and shall be provided for the remainder of the PoP. The Contractor shall provide a secure connection to enable access, set up, and configuring of the platform at each site. The platform shall be capable of being client supported, however during this pilot, the Contractor shall provide operational support and advice to medical center personnel on the use of the platform.

Deliverable:

- VA ATO

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- SaMD Licensing

Training and Support-

The Contractor shall:

- Provide remote (virtual) and/or on-site training sessions for all VA sites within VISN 1. Training dates shall be coordinated with VA PM, COR, and the individual sites Point of Contact (POC). Training shall be recorded for future use and provided to VA and VA shall own the recordings. The Training shall include both an overview of the platform and detailed walkthrough of the capabilities. Additional future training maybe provided as needed at no additional costs.
- Provide training materials to VA five (5) days prior to any training event. The Training Materials shall provide role-based training information and user guide to address how the users utilize the Radiology AI Software Platform and software features. Material shall consist of, at a minimum, detailed user manual and quick reference guide in digital formats.
- Provide technical support, online and via phone, during normal duty hours (Monday – Friday, 0700-1730 Local Time relative to the facility implementing) to troubleshoot and resolve technical/functional issues with the SaMD solution, to include accessing the capability. The Contractor shall provide this support for the duration of the PoP. Inquiries shall be responded to within twenty-four working hours.

Deliverables:

- Remote (virtual) training session(s)
- Training Materials
- Technical support, online and via phone

Assessment, Authorization, and Continuous Monitoring

Shall the Contractor use an externally hosted solution, the Contractor shall ensure the Radiology AI Software as a Medical Device Platform SaMD solution has an on-premises solution and received approval for the determined impact level prior to activating any software licenses for use. This shall include:

- The information system solution selected by the Contractor shall comply with the Federal Information Security Management Act (FISMA).
- The Contractor shall comply with Federal requirements as mandated by Federal laws and policies, including making available any documentation, physical access, and logical access needed to support this requirement.
- Following guidance from the Federal CIO, VA will utilize existing JAB ATO. VA will be using an on-premises solution baselines as a starting point, since they are specifically tailored for services.
- The Contractor shall, where applicable, assist with the VA ATO Process to help achieve agency authorization of the service or migrated application.
- The Contractor shall complete supporting documentation within 30 days after contract award.

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- The Contractor shall complete a Third-Party Assessment Organization (3PAO) Security Assessment Plan (SAP) within 75 days after contract award.
- The Contractor shall complete a 3PAO Security Assessment Report (SAR) within 90 days after contract award.
- The Contractor shall afford VA access to the Contractor's and Service Provider's (CSP) facilities, installations, technical capabilities, operations, documentation, records, and databases.
- If new or unanticipated threats or hazards are discovered by either VA or the Contractor, or if existing safeguards have ceased to function, the discoverer shall immediately bring the situation to the attention of the other party in accordance with the security addendum B.
- The Contractor shall not release any data without the consent of VA in writing. All requests for release must be submitted in writing to the COR and CO.
- In order for live VA data to be used in this system, an on-premises solution and Agency ATO will be required. For applications hosted on the VA Enterprise an Agency ATO will still be required.

Deliverables:

- System Security Plan (SSP) and supporting documentation (If Applicable).
- 3PAO Security Assessment Plan (SAP)
- 3PAO Security Assessment Report (SAR) D. VA ATO completion and supporting documentation.

Trustworthy Artificial Intelligence

For purposes of this clause, AI is defined as set forth in Executive Order (EO) 13960 and Section 238(g) of the National Defense Authorization Act for Fiscal Year 2019 to include:

- Any artificial system that performs tasks under varying and unpredictable circumstances without significant human oversight, or that can learn from experience and improve performance when exposed to data sets.
- An artificial system developed in computer software, physical hardware, or other context that solves tasks requiring human-like perception, cognition, planning, learning, communication, or physical action.
- An artificial system designed to think or act like a human, including cognitive architectures and neural networks.
- A set of techniques, including machine learning (ML), that is designed to approximate a cognitive task.

An artificial system designed to act rationally, including an intelligent software agent or embodied robot that achieves goals using perception, planning, reasoning, learning, communicating, decision making, and acting. At time of proposal submission, contract award, and upon VA's request throughout contract performance, but no less than annually, the Contractor shall expressly disclose in writing to the COR and CO any AI proposed, and if successful, ultimately used in performance of the contract. AI shall not be used in performance of the contract without express written approval and authorization from the CO. Furthermore, the Contractor shall report any AI it intends to use in contract performance to the VISN 1

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AI Oversight Committee (AIOC), and the VISN 1 Imaging ICC. The Contractor shall assist with any AI discovery, assessment, and compliance activities undertaken by VA.

If a Contractor intends to use, and VA has approved the use of AI in contract performance, prior to use the Contractor shall provide VA a Statement of Attestation, signed by an authorized agent able to bind the Contractor, that any proposed product or service using or implementing AI adheres to Executive Order 13960. The Statement of Attestation shall include, but not be limited to, a description of all controls, processes, technologies, and/or mechanisms used to satisfy the 9 principles in [Federal Register](#):

- Principles within Executive Order 13960 The Statement of Attestation shall also certify that the Contractor owns or possesses all legally required rights, copyright, and licenses to use the AI. The Statement of Attestation shall also represent that VA use of the AI in performance of the contract does not and will not infringe upon or violate any intellectual property rights or any other third-party rights of any kind. The Statement of Attestation shall also represent that there have been no persisting or existing material errors, defects, failures, or interruptions in the AI or in the performance of its intended purpose, and that the AI has materially performed in accordance with its specifications and intended purpose. Lastly, the Statement of Attestation shall be updated and resubmitted annually in performance of the contract and/or prior to the exercise of any contract option period. The Statement of Attestation shall be deemed separate from, and in addition to, the Contractor's reporting requirements relative to the use of AI identified in subsection b, above. Please be advised that the Statement of Attestation is a material term of the contract; accordingly, failure to provide the relevant Statement of Attestation, to include all of its requirements identified herein, may be deemed a breach of contract and thus, cause for termination.
- The Contractor (or subcontractor at any tier, including affiliates) shall not sell, monetize, or otherwise release or misuse any VA models, training/testing data, patterns, documentation, implementation artifacts, runtime artifacts, and/or any other digital artifacts, partially or in whole, derived from AI or ML without the express written consent and approval from the VA Contracting Officer.
- The Contractor shall indemnify VA and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of VA use of any AI products and/or services under the contract.
- The Contractor shall maintain commercially reasonable insurance coverage for claims or losses pertaining to the AI products or services being used in performance of the contract.
- The Contractor shall maintain commercially reasonable and industry standard conforming security safeguards and controls, including proper access controls for the AI. The Contractor agrees the VA Contracting Officer has the unilateral right to require deactivation of any AI for any reason without notice.
- Any development and/or creation of AI during performance of this contract is subject to applicable Intellectual Property and data rights clauses under the Federal Acquisition Regulation.

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- In accordance with EO 13960 Sec. 9 (c), this clause applies to both existing and new uses of AI, both stand-alone AI and AI embedded within other systems or applications, AI developed both by the agency or by third parties on behalf of agencies for the fulfillment of specific agency missions, including relevant data inputs used to train AI and outputs used in support of decision making, and VA procurement of AI applications.
- In accordance with EO 13960 Sec. 9 (d), this clause does not apply to AI embedded within common commercial products, such as word processors or map navigation systems. The Contractor shall inform the VA Contracting Officer in writing if it believes the AI it intends to use during contract performance is not covered by this clause. The burden to demonstrate the AI is a common commercial product shall rest solely with the Contractor.
- Non-compliance with any of the above terms, or an accidental or purposeful loss of sensitive VA medical records information resulting from AI use, may result in Contractor liability to VA for any and all rights and remedies provided by law, including but not limited to contract termination, liquidated damages, and referral to VA's Suspension and Debarment Committee.
- The Contractor shall include the substance of this clause in all subcontracts, including subcontractors at any tier and affiliates.

VA Technical Reference Model

The Contractor shall support the VA enterprise management framework. In association with the framework, the Contractor shall comply with OI&T Technical Reference Model (VA TRM). The VA TRM is one component within the overall Enterprise Architecture (EA) that establishes a common vocabulary and structure for describing the information technology used to develop, operate, and maintain enterprise applications. Moreover, the VA TRM, which includes the Standards Profile and Product List, serves as a technology roadmap and tool for supporting OI&T. Architecture & Engineering Services (AES) has overall responsibility for the VA TRM.

Federal Identity, Credential, and Access Management (FICAM)

The Contractor shall ensure Commercial Off-The-Shelf (COTS) product(s), software configuration customization, and/or new software are Personal Identity Verification (PIV) card-enabled by accepting HSPD-12 PIV credentials using VA Enterprise Technical Architecture (ETA), https://www.ea.oit.va.gov/EA/OIT/VA_EA/Enterprise_Technical_Architecture.asp, and VA Identity and Access Management (IAM) approved enterprise design and integration patterns, <https://www.oit.va.gov/library/recurring/edp/index.cfm>. The Contractor shall ensure all Contractor delivered applications and systems comply with the VA Identity, Credential, and Access Management policies and guidelines set forth in the VA Handbook 6510 and align with the Federal Identity, Credential, and Access Management Roadmap and Implementation Guidance v2.0. The Contractor shall ensure all Contractor delivered applications and systems provide user authentication services compliant with the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-63-3, VA Handbook 6500 Appendix F, "VA System Security Controls", and VA IAM enterprise requirements for direct, assertion-based authentication, and/or trust based authentication, as determined by the design and integration patterns. Direct authentication at a minimum must include Public Key Infrastructure

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(PKI) based authentication supportive of PIV card and/or Common Access Card (CAC), as determined by the business need.

The Contractor shall ensure all Contractor delivered applications and systems conform to the specific Identity and Access Management PIV requirements set forth in the Office of Management and Budget (OMB) Memoranda M-04-04, M-05-24, M-11-11, and NIST Federal Information Processing Standard (FIPS) 201-2. OMB Memoranda M-04-04, M05-24, and M-11-11 can be found at:

- <https://obamawhitehouse.archives.gov/sites/default/files/omb/assets/omb/memoranda/fy04/m04-04.pdf>,
- <https://obamawhitehouse.archives.gov/sites/default/files/omb/assets/omb/memoranda/fy2005/m05-24.pdf>, and
- <https://obamawhitehouse.archives.gov/sites/default/files/omb/memoranda/2011/m1111.pdf>

respectively. Contractor delivered applications and systems shall be on the FIPS 201-2 Approved Product List (APL). If the Contractor delivered application and system is not on the APL, the Contractor shall be responsible for taking the application and system through the FIPS 201 Evaluation Program.

The Contractor shall ensure all Contractor delivered applications and systems support:

- Automated provisioning and are able to use enterprise provisioning service.
- Interfacing with VA's Master Veteran Index (MVI) to provision identity attributes, if the solution relies on VA user identities. MVI is the authoritative source for VA user identity data.
- The VA defined unique identity (Secure Identifier [SEC ID] / Integrated Control Number [ICN]).
- Multiple authenticators for a given identity and authenticators at every Authenticator Assurance Level (AAL) appropriate for the solution.
- Identity proofing for each Identity Assurance Level (IAL) appropriate for the solution.
- Federation for each Federation Assurance Level (FAL) appropriate for the solution, if applicable.
- Two-factor authentication (2FA) through an applicable design pattern as outlined in VA Enterprise Design Patterns.
- A Security Assertion Markup Language (SAML) implementation if the solution relies on assertion-based authentication. Additional assertion implementations, besides the required SAML assertion, may be provided as long as they are compliant with NIST SP 800-63-3 guidelines.
- Authentication/account binding based on trusted Hypertext Transfer Protocol (HTTP) headers if the solution relies on Trust based authentication.
- Role Based Access Control.
- Auditing and reporting capabilities.
- Compliance with VIEWS 00155984, PIV Logical Access Policy Clarification
<https://www.voa.va.gov/DocumentView.aspx?DocumentID=4896>.

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The required Assurance Levels for this specific effort are Identity Assurance Level 3, Authenticator Assurance Level 3, and Federation Assurance Level 3.

Internet Protocol Version 6 (IPv6)

The Contractor solution shall support the latest Internet Protocol Version 6 (IPv6) based upon the directives issued by the Office of Management and Budget (OMB) on August 2, 2005

(<https://obamawhitehouse.archives.gov/sites/default/files/omb/assets/omb/memoranda/fy2005/m05-22.pdf>) and September 28, 2010

(https://obamawhitehouse.archives.gov/sites/default/files/omb/assets/egov_docs/transit/on-to-ipv6.pdf).

IPv6 technology, in accordance with the USGv6 Profile, NIST Special Publication (SP) 500-267

(<https://nvlpubs.nist.gov/nistpubs/Legacy/SP/nistspecialpublication500-267.pdf>), the Technical

Infrastructure for USGv6 Adoption (<https://www.nist.gov/programsprojects/usgv6-program>), and the

NIST SP 800 series applicable compliance (<https://csrc.nist.gov/publications/sp>) shall be included in all IT

infrastructures, application designs, application development, operational systems and sub-systems, and their integration. In addition to the above requirements, all devices shall support native IPv6 and/or dual stack (IPv6 / IPv4) connectivity without additional memory or other resources being provided by the

Government, so that they can function in a mixed environment. All public/external facing servers and

services (e.g. web, email, DNS, ISP services, etc.) shall support native IPv6 and/or dual stack (IPv6/ IPv4)

users and all internal infrastructure and applications shall communicate using native IPv6 and/or dual

stack (IPv6/ IPv4) operations. Guidance and support of improved methodologies which ensure

interoperability with legacy protocol and services in dual stack solutions, in addition to OMB/VA

memoranda, can be found at: <https://www.voa.va.gov/documentlistpublic.aspx?NodeID=282>.

Trusted Internet Connection (TIC)

The Contractor solution shall meet the requirements outlined in Office of Management and Budget Memorandum M08-05 mandating Trusted Internet Connections (TIC)

(<https://obamawhitehouse.archives.gov/sites/default/files/omb/assets/omb/memoranda/fy2008/m08-05.pdf>), M08-23 mandating Domain Name System Security (NSSEC)

(<https://obamawhitehouse.archives.gov/sites/default/files/omb/assets/omb/memoranda/fy2008/m08-23.pdf>), and shall comply with the Trusted Internet Connections (TIC) Reference Architecture Document,

Version 2.0 https://www.dhs.gov/sites/default/files/publications/TIC_Ref_Arch_v2.2_2017.pdf.

Standard Computer Configuration

The Contractor IT end user solution that is developed for use on standard VA computers shall be compatible with and be supported on the standard VA operating system, currently Windows 10 (64bit),

Internet Explorer 11 and Office 365 ProPlus. Applications delivered to VA and intended to be deployed

to Windows 10 workstations shall be delivered as a signed .msi package with switches for silent and

unattended installation and updates shall be delivered in signed .msp file formats for easy deployment

using System Center Configuration Manager (SCCM) VA's current desktop application deployment tool.

Signing of the software code shall be through a contractor provided certificate that is trusted by VA

using a code signing authority such as Verizon/Cybertrust or Symantec/VeriSign. The Contractor shall

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also ensure and certify that their solution functions as expected when used from a standard VA computer, with non-admin, standard user rights that have been configured using the United States Government Configuration Baseline (USGCB) and Defense Information Systems Agency (DISA) Secure Technical Implementation Guide (STIG) specific to the particular client operating system being used.

Veteran Focused Integration Process (VFIP)

The Contractor shall support VA efforts IAW the Veteran Focused Integration Process (VFIP). VFIP is a Lean-Agile framework that services the interest of Veterans through the efficient streamlining of activities that occur within the enterprise. The VIP Guide can be found at <https://www.voa.va.gov/DocumentView.aspx?DocumentID=4371>. The VFIP framework creates an environment delivering more frequent releases through a deeper application of Agile practices. In parallel with a single integrated release process, VFIP will increase cross-organizational and business stakeholder engagement, provide greater visibility into projects, increase Agile adoption and institute a predictive delivery cadence. VFIP is now the single authoritative process that IT projects must follow to ensure development and delivery of IT products.

Process Asset Library (PAL)

The Contractor shall perform their duties consistent with the processes defined in the OIT Process Asset Library (PAL). The PAL scope includes the full spectrum of OIT functions and activities, such as VIP project management, operations, service delivery, communications, acquisition, and resource management. PAL serves as an authoritative and informative repository of searchable processes, activities or tasks, roles, artifacts, tools and applicable standards and guides to assist the OIT workforce, Government and Contractor personnel. The Contractor shall follow the PAL processes to ensure compliance with policies and regulations and to meet VA quality standards. The PAL includes the Contractor onboarding process consistent with Section 6.2.2 and can be found at https://www.va.gov/PROCESS/artifacts/maps/process_CONB_ext.pdf. The main PAL can be accessed at www.va.gov/process.

VA Information Custodial Language

- The Government shall receive unlimited rights to data/intellectual property first produced and delivered in the performance of this contract or order (hereinafter “contract”) unless expressly stated otherwise in this contract. This includes all rights to source code and all documentation created in support thereof. The primary clause used to define Government and Contractor data rights is FAR 52.227-14 Rights in Data – General. The primary clause used to define computer software license (not data/intellectual property first produced under this Contractor or order) is FAR 52.227-19, Commercial Computer Software License.
- Information made available to the Contractor by VA for the performance or administration of this contract will be used only for the purposes specified in the service agreement, SOW, PWS, PD, and/or contract. The Contractor shall not use VA information in any other manner without prior written approval from a VA Contracting Officer (CO). The primary clause used to define Government and Contractor data rights is FAR 52.227-14 Rights in Data – General.

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- VA information will not be co-mingled with any other data on the Contractor's information systems or media storage systems. The Contractor shall ensure compliance with Federal and VA requirements related to data protection, data encryption, physical data segregation, logical data segregation, classification requirements and media sanitization.
- VA reserves the right to conduct scheduled or unscheduled audits, assessments, or investigations of Contractor Information Technology (IT) resources to ensure information security is compliant with Federal and VA requirements. The Contractor shall provide all necessary access to records (including electronic and documentary materials related to the contracts and subcontracts) and support (including access to Contractor and subcontractor staff associated with the contract) to VA, VA's Office Inspector General (OIG), and/or Government Accountability Office (GAO) staff during periodic control assessments, audits, or investigations.
- The Contractor may only use VA information within the terms of the contract and applicable Federal law, regulations, and VA policies. If new Federal information security laws, regulations or VA policies become applicable after execution of the contract, the parties agree to negotiate contract modification and adjustment necessary to implement the new laws, regulations, and/or policies.
- The Contractor shall not make copies of VA information except as specifically authorized and necessary to perform the terms of the contract. If copies are made for restoration purposes, after the restoration is complete, the copies shall be destroyed in accordance with VA Directive 6500, VA Cybersecurity Program and VA Information Security Knowledge Service.
- If a Veterans Health Administration (VHA) contract is terminated for default or cause with a business associate, the related local Business Associate Agreement (BAA) shall also be terminated and actions taken in accordance with VHA Directive 1605.05, Business Associate Agreements. If there is an executed national BAA associated with the contract, VA will determine what actions are appropriate and notify the contractor.
- The Contractor shall store and transmit VA sensitive information in an encrypted form, using VA-approved encryption tools which are, at a minimum, Federal Information Processing Standards (FIPS) 140-2, Security Requirements for Cryptographic Modules (or its successor) validated and in conformance with VA Information Security Knowledge Service requirements. The Contractor shall transmit VA sensitive information using VA approved Transport Layer Security (TLS) configured with FIPS based cipher suites in conformance with National Institute of Standards and Technology (NIST) 800-52, Guidelines for the Selection, Configuration and Use of Transport Layer Security (TLS) Implementations.
- The Contractor's firewall and web services security controls, as applicable, shall meet or exceed VA's minimum requirements.
- Except for uses and disclosures of VA information authorized by this contract for performance of the contract, the Contractor may use and disclose VA information only in two situations: (i) in response to a qualifying order of a court of competent jurisdiction after notification to VA CO (ii) with written approval from the VA CO. The Contractor shall refer all requests for, demands for production of or inquiries about, VA information and information systems to the VA CO for response.

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- Notwithstanding the provision above, the Contractor shall not release VA records protected by Title 38 U.S.C. § 5705, Confidentiality of medical
- quality- assurance records and/or Title 38 U.S.C. § 7332, Confidentiality of certain medical records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse or infection with Human Immunodeficiency Virus (HIV). If the Contractor is in receipt of a court order or other requests for the above- mentioned information, the Contractor shall immediately refer such court order or other requests to the VA CO for response.
- Information made available to the Contractor by VA for the performance or administration of this contract or information developed by the Contractor in performance or administration of the contract will be protected and secured in accordance with VA Directive 6500 and Identity and Access Management (IAM) Security processes specified in the VA Information Security Knowledge Service.
- Any data destruction done on behalf of VA by a Contractor shall be done in accordance with National Archives and Records Administration (NARA) requirements as outlined in VA Directive 6300, Records and Information Management, VA Handbook 6300.1, Records Management Procedures, and applicable VA Records Control Schedules.
- The Contractor shall provide its plan for destruction of all VA data in its possession according to VA Directive 6500 and NIST 800-88, Guidelines for Media Sanitization prior to termination or completion of this contract. If directed by the COR/CO, the Contractor shall return all Federal Records to VA for disposition.
- Any media, such as paper, magnetic tape, magnetic disks, solid state devices or optical discs that is used to store, process, or access VA information that cannot be destroyed shall be returned to VA. The Contractor shall hold the appropriate material until otherwise directed by the Contracting Officer's Representative (COR) or CO. Items shall be returned securely via
- VA-approved methods. VA sensitive information must be transmitted utilizing VA-approved encryption tools which are validated under FIPS 140-2 (or its successor) and NIST 800-52. If mailed, the Contractor shall send via a trackable method (USPS, UPS, FedEx, etc.) and immediately provide the COR/CO with the tracking information. Self-certification by the Contractor that the data destruction requirements above have been met shall be sent to the COR/CO within 30 business days of termination of the contract.
- All electronic storage media (hard drives, optical disks, CDs, back-up tapes, etc.) used to store, process or access VA information will not be returned to the Contractor at the end of lease, loan, or trade-in. Exceptions to this paragraph will only be granted with the written approval of the VA CO.

VA Training

All Contractors and subcontractors requiring access to VA information and VA information systems shall successfully complete the following before being granted access to VA information and its systems:

- VA Privacy and Information Security Awareness and Rules of Behavior course (Talent Management System (TMS) #10176) initially and annually thereafter.

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- Sign and acknowledge (electronically through TMS #10176) understanding of and responsibilities for compliance with the Organizational Rules of Behavior, relating to access to VA information and information systems initially and annually thereafter; and
- Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system or information access [to be defined by the VA program official and provided to the VA CO for inclusion in the solicitation document – i.e., any role- based information security training].
- The Contractor shall provide to the COR/CO a copy of the training certificates and certification of signing the Organizational Rules of Behavior for each applicable employee within five days of the initiation of the contract and annually thereafter, as required.
- Failure to complete the mandatory annual training is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the contract until such time as the required training is complete.

Privacy & Confidentiality statement:

- In reference to VHA Handbook 6500.6 Appendix A, Block 6, the equipment included in this contractor does involve connection of IT devices to a VA network. Therefore, C&A, SAP, & the following from App C apply
- In reference to VHA Handbook 6500.6 Appendix A, Block 7, the equipment does involve storing, generating, transmitting, or exchanging VA sensitive information. Therefore, the following from App C apply.
- The contractor, their personnel, and their subcontractors shall be subject to the Federal laws, regulations, standards, and VA Directives and Handbooks regarding information protection, patient privacy, and information system security as delineated in this contract.
- During contract performance, contractor may require access to VA facility, equipment, information systems, or sensitive data; to provide services, install, train, maintain or repair equipment.
- VA Course No. VA10176 is privacy training required for VA contractors requiring access to VA facilities for more than 2 consecutive days or any access to VA information systems. Training will be completed prior to being granted access to facilities, equipment, or to the data therein. Training is available on VA TMS website at: <https://www.tms.va.gov/SecureAuth35/>.
- Contractor will provide evidence of training to the COR, upon request.

Government-Furnished Equipment (GFE)/Government-Furnished Information (GFI):

The Government will provide office space, telephone service and system access when authorized contract staff work at a government location as required in order to accomplish the Tasks associated

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with this SOW. All procedural guides, reference materials, and program documentation for the project and other Government applications will also be provided on an as-needed basis.

VA may provide remote access to VA specific systems/network in accordance with VA Handbook 6500, which requires the use of a VA approved method to connect external equipment/systems to VA's network. Citrix Access Gateway (CAG) is the current and only VA approved method for remote access users when using or manipulating VA information for official VA Business. VA permits CAG remote access through approved Personally Owned Equipment (POE) and Other Equipment (OE) provided the equipment meets all applicable 6500 Handbook requirements for POE/OE. All of the security controls required for Government furnished equipment (GFE) must be utilized in approved POE or OE. The Contractor shall provide proof to the COR for review and approval that their POE or OE meets the VA Handbook 6500 requirements and VA Handbook 6500.6 Appendix C, herein incorporated as Addendum B, before use.

This remote access may provide access to VA specific software such as Veterans Health Information System and Technology Architecture (VistA), ClearQuest, PAL, Primavera, and Remedy, including appropriate seat management and user licenses, depending upon the level of access granted. The Contractor shall utilize government provided software development and test accounts, document and requirements repositories, etc. as required for the development, storage, maintenance, and delivery of products within the scope of this effort. The Contractor shall not transmit, store, or otherwise maintain sensitive data or products in Contractor systems (or media) within the VA firewall IAW VA Handbook 6500.6 dated March 12, 2010. All VA sensitive information shall be protected at all times, in accordance with VA Handbook 6500, local security field office System Security Plans (SSP's) and Authority to Operate (ATO)'s for all systems/LAN's accessed while performing the tasks detailed in this PWS. The Contractor shall ensure all work is performed in countries deemed not to pose a significant security risk.

Position Sensitivity	Background Investigation (in accordance with Department of Veterans Affairs 0710 Handbook, "Personnel Suitability and Security Program," Appendix A)
Low / Tier 1	Tier 1 / National Agency Check with Written Inquiries (NACI) A Tier 1/NACI is conducted by OPM and covers a 5-year period. It consists of a review of records contained in the OPM Security Investigations Index (SII) and the DOD Defense Central Investigations Index (DCII), Federal Bureau of Investigation (FBI) name check, FBI fingerprint check, and written inquiries to previous employers and references listed on the application for employment. In VA it is used for Non-sensitive or Low Risk positions.
Moderate / Tier 2	Tier 2 / Moderate Background Investigation (MBI) A Tier 2/MBI is conducted by OPM and covers a 5-year period. It consists of a review of National Agency Check (NAC) records [OPM Security Investigations Index (SII), DOD Defense Central Investigations Index (DCII), FBI name check, and an FBI fingerprint check], a credit report covering a period of 5 years, written inquiries to previous employers and references listed on the application for employment; an interview with the subject, law enforcement

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	check; and a verification of the educational degree.
High / Tier 4	Tier 4 / Background Investigation (BI) A Tier 4/BI is conducted by OPM and covers a 10-year period. It consists of a review of National Agency Check (NAC) records [OPM Security Investigations Index (SII), DOD Defense Central Investigations Index (DCII), FBI name check, and a FBI fingerprint check report], a credit report covering a period of 10 years, written inquiries to previous employers and references listed on the application for employment; an interview with the subject, spouse, neighbors, supervisor, co-workers; court records, law enforcement check, and a verification of the educational degree.

The position sensitivity and the level of background investigation commensurate with the required level of access for the following tasks within the Performance Work Statement are:

- Position Sensitivity and Background Investigation Requirements by Task

Task Number	Tier 1 / Low / NACI	Tier 2 / Moderate / MRI	Tier 4 / High / BI
	☐	☐	☐
	☐	☐	☐
	☐	☐	☐

The Tasks identified above, and the resulting Position Sensitivity and Background Investigation requirements identify, in effect, the Background Investigation requirements for Contractor individuals, based upon the tasks the particular Contractor individual will be working. The submitted Contractor Staff Roster must indicate the required Background Investigation Level for each Contractor individual based upon the tasks the Contractor individual will be working, in accordance with their submitted proposal.

Other Pertinent Information or Special Considerations.

All work shall be performed by personnel qualified to work on the specific equipment.

All contractors and subcontractors shall comply with conditions specified in VAAR 852.204-71(d); Contractor operations required to be in United States. All contractors and subcontractors working with VA information must be permanently located within a jurisdiction subject to the law of the United States or its Territories to the maximum extent feasible. If services are proposed to be performed abroad the contractor must state where all non-U.S. services are provided. The contractor shall deliver to VA a

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detailed plan specifically addressing communications, personnel control, data protection and potential legal issues. The plan shall be approved by the COR/CO in writing prior to access being granted.

It has been determined that protected health information (PHI) may be used, disclosed, accessed, transmitted, created, stored/maintained, and/or destroyed (providing appropriate proof of destruction in compliance with VA Directive 6371) by the Contractor, and a signed Business Associate Agreement (BAA) will be required. The Contractor will adhere to the requirements set forth within the BAA, referenced in the solicitation, and will comply with all applicable VA/VHA Directives. Once awarded, Contractor and Contracting Officer will collaborate with the appropriate VISN Privacy Officer to implement the appropriate BAA.

Place of Performance

All sites within VISN 1.

Period of Performance

The Period of Performance (PoP) is a base of 12 months followed by four additional 12 month options for each site.

National Holidays

New Year's Day	January 01
Martin Luther King's Birthday	Third Monday in January
President's Day	Third Monday in February
Memorial Day	Last Monday in May
Juneteenth	June 19th
Independence Day	July 04
Labor Day	First Monday in September
Columbus Day	Second Monday in October
Veterans Day	November 11
Thanksgiving Day	Fourth Thursday in November
Christmas Day	December 25

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If the holiday falls on a Sunday, the following Monday will be observed as a national holiday. When a holiday falls on a Saturday, the preceding Friday is observed as a National holiday by U.S. Government Agencies, and any day specifically declared by the President of the United States of America.

Badge

Contractor shall obtain a "Contractor I.D Badge" from the VA Police. All Contractor personnel are required to wear I.D Badge during the entire time on VA facility. The I.D Badge **MUST** have an identification picture and shall state the name of the individual and the company represented.

Parking

It is the responsibility of the contract personnel to park in the appropriate designated parking areas. Parking information is available from VA Police & Security Service Office. The Contractor assumes full responsibility for any parking violations.

Invoicing & Payment

The Contractor shall submit in arrears a properly completed itemized invoice in accordance with FAR clauses 52.212-4(g) Contract Terms and Conditions – Commercial Items.

Invoices submitted for payment shall be reviewed for accuracy and shall be subject to approval by the Government prior to issuance of payment.

The invoice **MUST** be itemized to include the following information.

- Facility name and address where service was provided
- Contract number
- Purchase order number
- Quantity
- Cost
- Date

No advance payments shall be authorized. Payment shall be made on a monthly arrears for services provided during the billing month in arrears in accordance with FAR 52.212-4, para. (i) Upon submission of a properly prepared invoice for prices stipulated in this contract for services delivered and accepted in accordance with the terms and conditions of the contract, less any deductions stipulated in this contract.

Payment of invoices may be delayed if the appropriate invoices as specified in the contract are not completed and submitted as required.

[End of Document]

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